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To: [FTB Disclosure Office@FTB](mailto:FTB.Disclosure.Office@FTB)
Cc: [Charlie Eaton](#)
Subject: PRA Request from HERE Lab at UC Merced to California Franchise Tax Board
Date: Wednesday, April 24, 2024 12:46:16 PM

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04/24/2024

UC Merced, H.E.R.E Lab
Merced, California

Subject: Public Records Request

Dear Public Records Custodian:

This is a request made under the California Public Records Act, Government Code sections 7920.000 – 7931.000, for records in the possession or control of your agency.

The Higher Education, Race, and the Economy Lab (“HERE”) requests copies of the following records broken out by California community college district, college, or university:

1. All of the non-personally identifiable information included in the debtor accounts submitted to the Franchise Tax Board's Tax Intercept Program between 2016-March 15, 2024
2. Weekly Franchise Taxboard reports of offset activity for each payment type (one each for personal income tax refunds, lottery winnings, and unclaimed property claim payments) available in your agency's SWIFT folder.
3. Daily or weekly error report of rejected accounts including the debtor's account information submitted to FTB and the reason the account was rejected. This report is available in the agency's SWIFT folder after the file is processed. If there are questions about a rejected account, refer to the Rejected Accounts section.
4. Monthly reversal report of erroneous intercepts including debtor's account information and amount of reversal. The report is only provided in an encrypted email.
5. Dollar total of outstanding balances owed by all students sent for collections via the Franchise Tax Board IIC (Interagency Intercept Collection) program.
6. Total cost of IIC Program service fees paid per fiscal year from FY 2016-2017 through

FY 2023-24.

HERE does not object to the redaction from such records of any names or personally identifiable information of any individual.

In addition to the records requested above, HERE also requests records describing the processing of this request, including records sufficient to identify search terms used (if any), and locations and custodians searched, and any tracking sheets used to track the processing of this request. This includes any questionnaires, tracking sheets, emails, or certifications completed by, or sent to the Franchise Tax Board personnel with respect to the processing of this request. This specifically includes communications or tracking mechanisms sent to, or kept by, individuals who are contacted in order to process this request.

HERE seeks all responsive records, regardless of format, medium, or physical characteristics. In conducting your search, please understand the terms “record,” “document,” and “information” in their broadest sense, to include any written, typed, recorded, graphic, printed, or audio material of any kind. We seek records of any kind, including electronic records, audiotapes, videotapes, and photographs, as well as letters, emails, facsimiles, telephone messages, voice mail messages, transcripts, notes, or minutes of any meetings, telephone conversations, or discussions. Our request includes any attachment to these records. In addition, the Franchise Tax Board has a duty to construe a public record request liberally.

Please note that in conducting a “reasonable search” as required by law you must use the most up-to-date technologies and tools available, in addition to searches by individual custodians likely to have responsive information.

To ensure that this request is properly construed and does not create any unnecessary burden on the Franchise Tax Board, HERE welcomes the opportunity to discuss this request at your earliest convenience, consistent with and without waiving the legal requirements for the timeframe for your response.

Please provide responsive material in electronic format, if possible. Please send any responsive material via email at amartin462@ucmerced.edu. We welcome any materials that can be provided on a rolling basis.

Request for Waiver of Fees

HERE requests a waiver of fees associated with the processing of this request because: (1) disclosure of the requested information is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of a public institution; and (2) disclosure of the information is not primarily in the commercial interest of the requester. We hope you will consider waiving any fees under your discretionary authority in Cal. Government Code § 7922.505.

Disclosure of Information is Likely to Contribute Significantly to Public Understanding of the Operations or Activities of Colleges, Universities, and Government.

1. The request specifically relates to the operations or activities of colleges, universities, and the government.

2. The requested documents and records will likely contribute to an understanding of those specific operations or activities.

3. The disclosure will contribute to a greater understanding on the part of the public at large. HERE seeks this information to aid the public discourse surrounding issues facing California student loan borrowers, including the state's goals to support borrowers of color who disproportionately struggle with these debts.

4. Disclosure will "significantly" contribute to the public's understanding of colleges, universities, and governmental activities. As noted above, the subject of this request is a matter of great public interest—the working group was launched by the state legislature and is critical to addressing the student debt crisis in California.

Disclosure of Information is Not in Commercial Interest of HERE

This request is fundamentally non-commercial.

HERE is a research lab with the University of California Merced, founded in 2021 by Dr. Laura Hamilton and Dr. Charlie Eaton. HERE is a community and policy-engaged research institution, with the mission to understand and address disparities in the distribution of resources and risks within higher education systems and economies. HERE uses the information it gathers, and its analysis of it, to educate the public through reports, social media, press releases, and other mediums. HERE makes its reports and data available to the public and other researchers, without cost, on its website (<https://herelab.org/projects>).

Accordingly, HERE qualifies for a fee waiver.

* * *

HERE looks forward to working with you on this request within the statutorily provided timeframe. If you have any questions or concerns about the scope of the request, or foresee any problems whatsoever, please contact me at amartin462@ucmerced.edu. If the request for a fee waiver is not granted, and any fees will be in excess of \$25, please contact immediately.

Sincerely,

Andrew Martin
Graduate Student Researcher
UC Merced, HERE Lab